

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY BRACE,

Petitioner

VS.

NAUVANIE XAVIER,

Respondent

) Case Number: FDI-23-798381

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
MONEY FOR EMERGENCY HOUSING

TENTATIVE RULING

The parties are ordered to appear at 9:00 AM on 9/8/2026 in Department 404 in-person or by Zoom video to discuss Wife's 8/13/2026 Request for Order. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Anthony Brace (Husband) and Respondent Nauvanie Xavier (Wife) married on 11/11/2011. Husband contends the parties separated on 7/4/2023, for a marriage of 11 years and 7 months. Wife did not specify a date of separation in her Response to the Petition. The parties have no minor children. Husband is represented by Schneider Law. Wife's prior attorney Armin Najafi substituted out of this case on 7/1/2026. Wife is currently self-represented.
- 2) On 1/23/2025 (Findings and Order After Hearing filed 1/31/2025), Judge Costin ordered Husband to pay Wife \$1,156 per month in temporary guideline spousal support (plus \$250 per month for the \$4,474 in temporary spousal support arrears owed by Husband for the period 10/4/2024 –

1 1/31/2025). Judge Costin also ordered Wife to spend 10 hours per week in job search related
2 activities, apply for a minimum of 20 jobs per week, and serve written logs of her job search
3 activities each month. The guideline calculation is based on Husband's earning \$5,064 per month
4 in wages and \$1,420 per month in other taxable income, and Wife's earning \$1,935 per month in
5 unemployment compensation.

6 3) On 4/11/2025, the parties appeared for a Mandatory Settlement Conference, but a settlement was
7 not reached.

8 4) On 5/20/2025 (Findings and Order After Hearing filed 5/21/2025), Judge Costin ordered Husband
9 to pay \$15,000 directly to Wife's attorney for Family Code section 2030 attorney's fees. Judge
10 Costin also included the following language in her order: "The Court finds that Wife's work
11 search efforts are lacking as it appears that Wife has only applied to three jobs in the last four
12 months, and only at UCSF, who previously terminated her employment involuntarily. A good
13 faith search for work under the circumstances would involve Wife applying to multiple other jobs
14 with other employers and pursuing all openings in a reasonable commute distance in good
15 faith...Wife is reminded that it is the goal of this state that each party will make reasonable good
16 faith efforts to become self-supporting as provided in Family Code section 4320. Wife is on
17 notice that failure to make reasonable good faith efforts to become self-supporting may be one of
18 the factors considered by the Court as a basis for modifying or terminating spousal support."

19 5) On 8/15/2025, the parties appeared before Judge Luna for a Judicial Settlement Conference, but a
20 settlement was not reached.

21 6) The parties previously had a 3-day trial set in June 2026 before Judge Chan on the issues of date
22 of separation, division of assets and debts, spousal support, medical fees, attorney's fees,
23 reimbursements, credits, and breach of fiduciary duty. However, per the Stipulation and Order
24 filed 4/30/2026, the parties agreed to vacate the June 2026 trial dates and set a future trial setting
25 date on 9/21/2026 in Dept. 405.

26 7) On 7/17/2026, Wife filed an Income and Expense Declaration. Wife states that she is 54 years old
27 and has been unemployed since 9/16/2024. Wife states that her only source of income is \$1,406
28 per month in spousal support (it is not known why this figure does not match the \$1,156 per
29 month Husband is under an order to pay Wife per month). Wife states she has \$56 in cash savings

1 and lists no other assets. Wife states that she owes student loans and taxes, but does not specify an
2 amount. Wife states that her monthly expenses total \$2,395.

3 8) On 8/3/2026, Husband filed an Income and Expense Declaration. Husband states that he is 62
4 years old and is a stationary engineer for the University of Pittsburgh Medical Center. Husband
5 states that he is paid \$5,720 per month in wages and he earned \$2,268 in overtime last month.
6 Husband also states that he earns \$1,464 per month in pension / retirement fund payments.
7 Husband states that he has \$1,200 in cash and \$280 in easily saleable investments. Husband owes
8 nearly \$70,000 in debt, including a \$15,875 auto loan, credit card debt, and for medical bills.
9 Husband states that his monthly expenses total \$5,348.

10 9) On for hearing is Wife's Request for Order filed 8/13/2026. Wife requests that the Court modify
11 the current spousal support order to \$3,040 per month so she can pay for rent. Wife also requests
12 \$16,000 in attorney's fees. Wife did not file a declaration explaining the bases for her requests.

13 10) On 9/1/2026, Husband filed a Responsive Declaration. Husband asks the Court to deny Wife's
14 requests. Husband states, "Respondent has not provided the appropriate documentation and
15 information required to review/support her requests for a modification of Spousal Support, or to
16 review/support her request for Attorney's Fees and Costs... Respondent's previous attorney,
17 Armin M. Najafi, Esq., should be called into Court to justify why the \$11,990.40 in Attorneys
18 Fees and Costs was used up in this matter when he never did anything in the case over the past
19 year and a half after being retained. He essentially Substituted out of the case after being paid the
20 only funds we had available for Respondent to seek counsel. There are no sources to be able to
21 pull funds for additional attorney's fees and costs, and I have no funds left to afford to keep my
22 own attorney retained through Trial, which is coming up. My pending motion also requests
23 termination of Support for Respondent based on her continued non-compliance with Court
24 Orders."

25 11) The Court notes there is a future hearing date currently set for 12/4/2026 in Dept. 405A on
26 Husband's Request for Order filed 8/3/2026 on the Husband's requests to:

- 27 a. Order Wife to immediately produce a list of documents specified by Husband
- 28 b. Order issue and evidentiary sanctions
- 29 c. Order Wife to pay attorney's fees sanctions

- d. Terminate or in the alternative reduce temporary spousal support
- e. Impute income to Wife
- f. Order Wife to fully and timely comply with all future Seek Work Order obligations, including monthly production of logs
- g. Order Wife to sign any and all documents necessary for Moon Schwartz & Madden to obtain information directly from third parties including the University of California and the Stationary Engineers Local 39 Annuity Plan

B. Findings and Order

- 1) **The parties are ordered to appear to discuss Wife's 8/13/2026 Request for Order.**
- 2) On the Court's own motion, the Court sets a future hearing date of **12/8/2026 at 9:00 AM in Dept. 404** on the following issues from Husband's 8/3/2026 Request for Order:
 - a. Husband's request to terminate or in the alternative reduce temporary spousal support
 - b. Husband's request to impute income to Wife
 - c. Husband's request for an order for Wife to fully and timely comply with all future Seek Work Order obligations, including monthly production of logs
 - d. Husband's request for an order for Wife to sign and any all documents necessary for Moon Schwartz & Madden to obtain information directly from third parties including the University of California and the Stationary Engineers Local 39 Annuity Plan
- 3) The following issues from Husband's 8/3/2026 Request for Order shall remain on calendar for 12/4/2026 in Dept. 405A:
 - a. Husband's request for an order for Wife to immediately produce a list of documents specified by Husband
 - b. Husband's request for issue and evidentiary sanctions
 - c. Husband's request for attorney's fees sanctions related discovery